



POLICE DEPARTMENT

April 17, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202207350 (Incident Date: October 19, 2022) regarding Police Officer Edward Lam, Tax No. 964106 (DADS No. 2024-30059)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202207350, pertaining to Police Officer Edward Lam. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Lam would be detrimental to the Police Department's disciplinary process.

In this case, Officer Lam was assisting other officers in taking a complainant into custody. The initial officers decided to remove the complainant to the hospital for a psychiatric evaluation due to the irrational things he was saying and his violent behavior on a busy city sidewalk. Officer Lam unzipped the complainant's jacket pocket to allow another officer to search the pocket. When prompted by the complainant, Officer Lam explained that the complainant was going to be taken to the hospital for a psychiatric evaluation because he was "acting erratic". When asked by the complainant what erratic meant, Officer Lam said, "acting all crazy".

The Police Commissioner finds that Officer Lam did not have a justifiable reason to search the complainant's pocket. In addition, the Police Commissioner finds that Officer Lam's use of the word "crazy" in this context may have been discourteous but does not constitute offensive language. Furthermore, the Police Commissioner finds that Officer Lam was not obligated to offer the complainant his business card in this situation. Throughout the entire incident, the complainant was highly agitated and demonstrated to the officers that he was capable of sudden, violent outbursts. It is

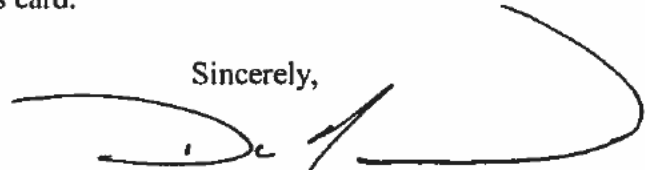
COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

unreasonable, under these circumstances, to require the officers to offer the complainant a business card. Finally, it should also be noted that Officer Lam has no formal disciplinary history, no prior substantiated CCRB cases, and an exceptional work history.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "A" Command Discipline to Officer Lam for the discourtesy and improper search allegations. The Police Commissioner also intends to impose no disciplinary action for the allegations that Officer Lam used offensive language and failed to offer the complainant a business card.

Sincerely,

A handwritten signature in black ink, appearing to read "Anthony S. Marino". The signature is fluid and cursive, with a large loop at the end.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

April 18, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police
Department One Police Plaza
New York, New York 10038

RE: CCRB v. PO Edward Lam
CCRB Case No. 202207350

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated April 17, 2024¹, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter and issue a Schedule “A” Command Discipline against Police Officer (“PO”) Edward Lam. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to Deputy Chief Marino’s notification.

For Specification one (1) the Commissioner agrees that Officer Lam did not have a justifiable reason to search the complainant's pocket and intends to direct the issuance of a Schedule “A” Command Discipline.

Regarding Specification two (2) Deputy Chief Marino states that “Officer Lam was not obligated to offer the complainant his business card in this situation.” CCRB disagrees with this determination. As officers are required to provide their business cards at the conclusion of a search of a person and PO Lam failed to do so.

As to Specifications three (3) and four (4), the Police Commissioner found that Officer Lam's use of the word “crazy” in this context may have been discourteous, but it did not constitute offensive language. CCRB agrees in part and disagrees in part with this determination. The CCRB agrees that the use of the word “crazy” was discourteous, but it was also offensive. While PO Lam testified that when he told § 87(2)(b) that he was “acting crazy,” he was not calling § 87(2)(b) crazy and did not mean to insult him, per the Administrative Guide and Patrol Guide, officers are held to a higher standard of integrity than civilians, and as the term, “crazy,” directly relates to someone’s perceived mental state.

¹ The statute of limitations for the allegations set forth in the Charges and Specifications is April 19, 2024. The CCRB filed the charges in this matter on March 12, 2024, however, the Deputy Chief’s letter was not received until April 17, 2024. The CCRB requests that these types of letters be sent with adequate time to respond as per the Memorandum of Understanding or that the NYPD serve the charges upon respondents to preserve the statute of limitations, allowing the CCRB adequate time to respond.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, and in the interest of justice, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against PO Lam in this matter.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Jonathan Darche", written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

April 19, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

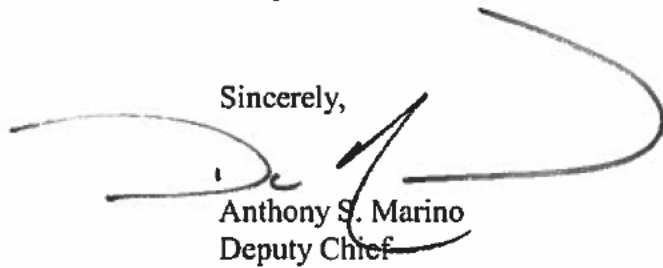
Re: CCRB Case No. 202207350 (Incident Date: October 19, 2022) regarding Police Officer Edward Lam, Tax No. 964106 (DADS No. 2024-30059)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated April 18, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Edward Lam, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Lam for the reasons expressed in my April 17, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, now directs the issuance of a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day for the discourtesy and search allegations. Additionally, Police Officer Lam will receive formalized training for the improper search allegation. Furthermore, the Police Commissioner also directs that no disciplinary action be imposed for the allegations that Officer Lam used offensive language and failed to offer the complainant a business card.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office